

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

DOCKET NO. 25-02

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC AGREEMENT No.011982); EVERGREEN MARINE CORPORATION (TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.; EVERGREEN MARINE (SINGAPORE) PTE. LTD.; AND YANG MING MARINE TRANSPORT CORPORATION, *Respondents*.

Served: July 20, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

THIRD AMENDED SCHEDULING ORDER

Pursuant to my July 14, 2026 Order to Resubmit Third Joint Motion to Extend Deadlines (“Order to Resubmit”), Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondents Evergreen Line Joint Service Agreement (FMC Agreement No. 011982); Evergreen Marine Corporation (Taiwan) Ltd.; Evergreen Marine (UK) Limited, Italia Maritima SpA; Evergreen Marine (Hong Kong) Ltd.; Evergreen Marine (SINGAPORE) Pte. Ltd. (collectively, “Evergreen”), and Yang Marine Transport Corporation (“Yang Ming”), filed a Revised Third Joint Motion to Extend Deadlines (“JME”), dated July 17, 2026. The last amended scheduling order in this proceeding issued on May 15, 2026, and extended the discovery deadlines by approximately 30-days. The parties submit that there is good cause to extend the schedule because witnesses are currently out of the country, have not responded to efforts to contact them, are on vacation, require subpoenas with adequate time to respond and schedule, or are located outside the United States. In the JME, the parties provide detail on their efforts to locate and cooperatively schedule witnesses. Also in response to the Order to Resubmit, the parties state that they “have agreed to stipulate to relevant facts gathered from discovery in previous litigations...thereby narrowing the issues and reducing the scope of fact testimony required in this proceeding.” JME at 6. To that end, NBG is preparing a draft set of facts to which the parties may be able to stipulate. Moreover, the parties have compressed the time requested for expert reports and depositions from five weeks to three weeks to allow more time for fact witness testimony.

The proposed extension is reasonable, and the parties have submitted good cause to extend the schedule. The parties proposed a compressed briefing schedule to comply with the directive in the Order to Resubmit to complete briefing by December 8, 2026, but I have extended the briefing

due dates to allow the typical four-week periods after the close of discovery and after submission of Complainant's initial brief, with an additional two days for Respondent's opposition to account for the two federal holidays in November. These modifications result in the briefing concluding on December 15, 2026. Accordingly, it is **ORDERED** that the parties follow this amended schedule:

August 26, 2026	Complete depositions of fact witnesses
September 11, 2026	Disclosure of initial expert reports, if any
September 11, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
September 24, 2026	Disclosure of rebuttal expert reports, if any
October 2, 2026	Complete expert depositions
October 2, 2026	Close of discovery
October 30, 2026	Complainant's Brief, proposed findings of fact, appendix due
December 1, 2026	Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due
December 15, 2026	Complaint's Reply Brief, response to Respondent's proposed findings of fact due

The parties are reminded that any filing submitted without page numbers, including on exhibits, may be rejected. The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact,

then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact in a word-processing format (e.g., Microsoft Word) and provided by email.

4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins, and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties should also review the Initial Order and Rule 5 for detailed instructions on how to properly mark confidential filings and to submit motions for confidentiality that "show good cause...that the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii)." 46 C.F.R. § 502.5.



Linda S. Harris Crovella
Administrative Law Judge